

26STCV07514 26STCV07514

County: los-angeles

Division: Civil Law and Motion

Department: 516

Hearing date: 2026-08-17

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Case Number: 26STCV07514 Hearing Date: August 17, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August

17, 2026

Case Name: Mesriani

Law Group, APLC, et al. v. Merus, Inc. Case No.: 26STCV07514

Motion: Motion

to be Relieved as Counsel

Moving Party: Counsel for Mercus, Inc. and Mercus Case Management Services, Inc.

Opposing Party: None

Tentative Ruling: The

Motion to be Relieved as Counsel is denied.

Defendants'

counsel –P. Renee

Wicklund and David F. Pustilnik– seeks to be relieved as

counsel of record for Defendants Mercus, Inc. and Mercus Case Management Services, Inc. No opposition was filed.

The motion to be

relieved as counsel is denied.

Discussion

An attorney is entitled to withdraw upon the consent of the client, or without that consent if approved by the court. (Code Civ. Proc., § 284; Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.) In the latter case, counsel must make a motion to be relieved as attorney of record. The motion must be made using mandatory forms: Notice of Motion and Motion to be Relieved as Counsel – Civil (MC-051), Declaration (MC-052), and Proposed Order (MC-053). (Cal. Rules of Court, rule 3.1362, subd. (a), (b), (e).)

The declaration accompanying the motion to be relieved as counsel must state “in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1).” (Cal. Rules of Court, rule 3.1362, subd. (b).)

The notice to the client must be delivered by personal service, electronic means, or mail. If it is done via mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration confirming the service address to be the most current residence or that it is the client’s last known address, and the attorney has been unable to locate a more current address. (Cal. Rules of Court, rule 3.1362, subd. (d)(1)(A)-(B).) If the notice is served on the client by electronic service under Code of Civil Procedure section 1010.6 and rule 2.251, it must be accompanied by a declaration stating that the electronic service address is the client’s current electronic service address. (Cal. Rules of Court, rule 3.1362, subd. (d)(2).)

Defendants’

counsel P. Renee

Wicklund and David F. Pustilnik have failed to comply with the procedural requirements of filing the mandatory forms MC-051 and MC-053.

Also,

David F. Pustilnik is not admitted to practice in the State of California. The Court previously denied his application to be admitted pro hac vice. (August 10, 2026, Minute Order.)

Thus,
the Court denies counsel P. Renee
Wicklund and David F. Pustilnik's motion to be relieved as counsel.